

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION
WRIT PETITION NO. 9685 OF 2010

1. Shri Shrikrishna Ramchandra
Dharap, Adult Occupation Agriculturist,
residing at Vardoli, Taluka Panvel,
District Raigad. .. Petitioners

2. Shri Anand Ramchandra Dharap
3. Shri Prakash Vasudeo Datar
4. Smt. Vinita Vijay Vartak, occupation
of all nos.2 to 5, agriculturist, all
residing at Vardoli, Panvel, Dist Raigad.

Versus

1. State of Maharashtra through
Secretary, Revenue and Forest Dept,
Mantralaya, Mumbai 32.

2. The Collector, Alibag, Dist. Raigad
3. Up-Zilla Adhikari, Private Forest,
Alibag, District Raigad. .. Respondents

4. The Chief Conservator of Forest,
Thane Range, District Thane.
5. The Conservator of Forest, Thane
Range. District Thane.
6. Union of India, Ayakar Bhavan, New
Marine Lines, Mumbai 400020.

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Mr.Vineet Naik, Sr. Advocate with Sukand Kulkarni and Miheer Jaykar i/b S.V. Sonawane and Sangharshika Sonawane for the petitioners.

Ms.S.D. Vyas, Addl. Government Pleader with Mr.Karan Thorat 'B' Panel Counsel for respondent nos.1 to 5.

**CORAM : BHARATI DANGRE &
MANJUSHA DESHPANDE, JJ
DATED : 23rd MARCH, 2026**

JUDGMENT:- (Per Bharati Dangre, J)

1. The petition filed by the petitioners having been admitted on 8/7/2022 is taken up for hearing on completion of the pleadings.

We have heard learned Senior advocate, Mr. Vineet Naik with Sukand Kulkarni for the petitioners. The State Authorities are represented by Additional Government Pleader Miss Shruti Vyas along with Karan Thorat 'B' Panel Counsel. Since the petitioners did not press the challenge to the validity of the 40th Amendment Act 1976 placing Maharashtra Private Forest Acquisition Act, 1975 under the Ninth Schedule of the Constitution, as sought in prayer clause (b), the Writ Petition is heard without the presence of the counsel representing the Union of India, or the Attorney General.

2. The petitioners are the owners of various pieces and parcels of agricultural land, bearing Survey No. 2B(3), and 2C(1) of village Machi, Prabal, Taluka Panvel, District, Raigad, admeasuring 56H and 19.5R. The petitioners plead that they are agriculturists, and the lands belonging to them are agricultural lands, and are so recorded in the Revenue Records, and the title of the petitioners over the subject lands is not in dispute.

The respondent no.1 to the petition is the State of Maharashtra represented through Ministry of Revenue and Forest, whereas these respondent nos.2 to 5 are the functionaries of the State Government discharging their duties under the provisions of Maharashtra Private Forest (Acquisition) Act 1975 (hereinafter referred to as 'Forest Act 1975'. Respondent no. 6 is the Union of India, who was impleaded, since the challenge was raised in the petition to the validity of the 40th Constitutional Amendment, but the learned Senior Counsel make a statement that he is not pressing the said challenge, and he restrict the challenge in the petition to the legality and validity of notification dated 30/10/1999 issued by the Forest Department and to the corrigendum issued on 2/7/2001.

In short, the petition has raised challenge to the impugned notification issued by the State of Maharashtra under the purported exercise of powers under section 21(5) of the Act of 1975, by which the State has declared the lands of the petitioners as 'Private Forest' from the date of its notification, but by issuing a corrigendum rectified the error which had occurred in describing one of the survey numbers in the impugned declaration.

3. The petitioners have pleaded that they are the owners of the lands of the aforesaid description and are in actual possession of the same, which position continue as on date. It is their pleaded case that perusal of the extract of land record i.e.

7/12 extract and form VI maintained under the provisions of the Maharashtra Land Revenue Code, 1966, would reflect the crops taken in the said land.

On 22/10/1997, the State Government published a notification in official gazette purportedly in terms of Section 21(1) of the Act of 1975, that their lands are proposed to be declared as 'Private Forest' and called upon the interested persons to file their objections. In furtherance of the said notification, the petitioners also received a notice in the nature of show cause notice dated 23/3/1998 with reference to the proposal to declare the lands of the petitioners as 'private forest'.

Responding to the aforesaid show cause, the petitioners submitted their objection in form of an affidavit on 17/4/1998, addressing the same to the District Collector, Alibag, specifically stating that the lands in question are agricultural lands, and they are under cultivation by the petitioners. It was specifically pointed out that the vegetation present on the subject land was creation of the petitioners by artificial means and/or by human agency, and they have planted and nurtured forest species on the site. It was also specifically stated that the petitioners are taking crops of Ragi, Vari, etc. and they have planted more than 4000 trees, including teak and other forest species, and approximately 1000 fruit bearing trees like mango, jambul, karvand, etc. Categorically stating that the agricultural land was cultivated by 'rab' method, prevalent in Konkan region of

Maharashtra, which require burning of shrubs, grass and bushes after they are spread on cultivable land to improve the texture of the land, the petitioners opposed the proposed declaration. It was stated that the petitioners had enhanced their produce yield by planting trees which would assist such growth.

4. In short, it was the specific stand adopted by the petitioners/noticee categorically stating that by using manpower and human efforts, they had planted various trees, and the original nature of the land was agricultural, and because of planting of trees, the land is under plantation/vegetation, but in no case, it has changed its nature from agricultural land into forest.

In the affidavit before the Collector, the petitioner no.1, categorically deposed thus :-

“7 We have already done plantations for various fruit and forest trees, which has not only improved the vegetation of the area but has created employment to the legal Adivasi population. Their livelihood close to their place to stay has stopped their activity of illegal falling of trees in forest area to sell fuel wood in the nearing area to earn daily bread.

8 The typical situation of our lands has a vast potential for plantation of rare medicinal forest trees and plants which commands global export market and availability of the said medicinal plants in naturally grown forest of Sahyadri has become almost nil. We are already in the process test plantation of some of the medical and spice plants in our lands which have shown encouraging result.

9 It is further submitted that the object for which the land in question is being used is for afforestation human plantation or through artificial means this being the factual position in view of the provisions of Section 21A the proposed modification cannot be made applicable to our lands and on this grounds alone the Show Cause Notice issued by you is required to be quashed and set aside.”

It was therefore prayed that in view of Section 21A of the Forest Act 1975, the proposed action of declaration of the land as 'Private Forest' through the show cause notice, shall be dropped. It was also specifically pointed out that Section 21A of the Act of 1975 do not apply to any non-forest land on which afforestation is made by any artificial means or human agency by planting forest trees species.

5. On 20/4/1998, the Deputy Collector, Alibag visited the site and prepared a panchnama.

The panchnama is placed on record as a part of the petition, and it record the factual position present on site, i.e. land at survey 2(B)(3) and 2C(1). It refers to the presence of various trees with its numbers as below :-

- (1) Mangoes – 70 to 80 (small and big)
- (2) Umbar – 50 to 60 trees.
- (3) Karanj – 30 to 40 trees.
- (4) Jambool -- 50 to 60 trees.
- (5) Fanas – 10 to 15 trees.
- (6) Khair – 5 to 10.
- (7) Chivan 5 to 7 trees.
- (8) Cashew – 50 to 60 trees.

6. The panchanama also referred to the cultivation in form of Rice, Nachni, Vari, and also made reference to the hutments of tribal people, and permanent structure of petitioner no.1 Shri Dharap, along with the presence of a well.

After the visit of the Deputy Collector, Alibag, the petitioner filed an additional affidavit on 21/4/1998 before the District Collector, offering further details of the afforestation and/or plantation that was undertaken, and standing on the

subject land since 1984. In the said affidavit, it is categorically deposed that the plants which were planted on the site were purchased in the year 1985-1986 and that since various villagers had caused destruction of the planted trees, the petitioner no.1 engaged himself in new plantation on the land.

He also offered the bill-cum-receipts of the plants purchased by him from various nurseries giving details of the species of the plants purchased along with the date of purchase. The relevant photographs of the site, of the saplings and documents showing labour charges incurred for planting the trees also formed part of the additional statement.

The petitioner thus requested that the proposed action u/s. 21 of the Maharashtra Private Forest Act, 1975, be dropped.

It is pertinent to note that in the meantime, the notification published on 22/10/1997 lapsed in the wake of Section 21(8) of the Act of 1975 as on 21/10/1998. The petitioner received no communication for considerable period of time, and they were under a bonafide impression that the proposed action purportedly initiated in the show cause notice, has been dropped by the authorities. The petitioners therefore continued to be in possession of the land and also continued with the cultivation.

7. However, after a gap of about 12 years from the date of the last communication, the Officers from the office of the District Collector, Alibag restrained the petitioners from

cultivation of the land on the ground that the same was declared as 'Private Forest'.

When the petitioners sought information under the Right to Information Act, 2005, they gained knowledge that their lands were declared as 'Private Forest' under Section 21(5) of the Act of 1975 by a notification published on 13/10/1999, with reference to the publication of the notification, indicating the intention of the State Government to declare the land as 'forest land', and referring to the conduct of the inquiry by the Collector, Raigad. It is also mentioned that on taking into consideration the Reports, Objections, Proceedings, and the Opinion of the Collector, the State Government deemed it appropriate to declare the tract of land, not being the property of the Government to be a 'Private Forest' as it contained trees, shrubs, and pastures.

The Schedule to the said notification referred to land in Survey 28(3) and land in Survey No. 2C(i) with its boundaries being set out therein. This was, however, followed by a corrigendum, clarifying that Survey No.28(3) in Schedule shall be read as '2B(3)'.

The petitioners were taken by surprise, as though the proceedings under Section 21 were initiated in the year 1998, the petitioners did not hear anything from the respondents after April 1998 and suddenly they were made aware of their lands having been declared as 'Private Forest' by the impugned notification, thereby preventing the petitioners from continuing

cultivation and they made necessary inquiries and obtained factual details before they approached the Court by filing the present Writ Petition.

It is specifically urged by the petitioners that though their land has been declared as 'Private Forest', no steps are taken by the respondents for computation of compensation as contemplated under the Act of 1975 and the petitioners continue to be in possession of the land even as on date.

8. On collecting the necessary information which is compiled and included as part of the petition, the petitioners have placed reliance upon the same. In the series of transactions and communications, there is a reference to one communication addressed by the Deputy Collector, Raigad, Alibag to the Secretary, Revenue and Forest Department, informing that it was not possible to determine whether the trees standing on the subject land were not naturally grown or there is involvement of any human agency.

With reference to the factual inspection of the land carried out on 20/4/1998, and the report of the same having been forwarded, it was stated that the land was marked with presence of small and big trees of various kinds including mangoes, umber, karanj, jambul, etc are local species. Similarly, there were shrubs of karvand, nigh, ghaneri and the land was also found to be under cultivation of Vari and Nagli.

With reference to the inspection report, it is stated that Mr. Dharap had furnished an affidavit along with which he had

produced documents containing receipts of purchase of plants from various nurseries along with the dates. He had also produced job receipts of expenditure to the tune of Rs.3,66,756/- towards labour charges, plantation, irrigation during 1991 to 1997.

9. In the wake of the aforesaid, the Deputy Collector reported thus :-

“From actual observation of the site and inspection of trees in the place at village Machi Prabal Tal. Panvel G. No. 2(B)(3) and 2(C)(1), it will not be proper to express opinion whether Mr.Dharap has by artificial means has planted trees by manual labour. Because no expert in that field is available in this office. However, it is my opinion that it is necessary to take expert opinion as to whether trees which exist in Sr.No.2(B)(3) and Sr.No.2(C)(1) at village Machi Prabal Tal. Panvel are planted by Mr.Dharap by artificial means and made plantation through manual labour or grown naturally.”

Thus, by the aforesaid communication, the Deputy Collector desired to have an expert opinion on the issue as to whether trees standing on Survey No.2B(3) and Survey No. 2C(1) at village Machi are planted through artificial means.

10. This was followed by a note prepared by the Revenue and Forest Department, with reference to the communication from the Deputy Collector (Private Forest) Raigad, Alibag.

The note, with reference to the site report and the notification dated 22/10/1997 published in the gazette under Section 21(1), declaring total area of 56.195 as ‘Private Forest’ situated in village Machi, Prabal, it was indicated that show cause notices were issued to the concerned as to why the said

land shall not be declared as 'Private Forest'. The notification was published in Government Gazette on 22/10/1997, and it was necessary to take a decision within one year i.e. prior to 21/10/1998.

The report make a reference to notice issued to Shrikrishna Ramchandra Dharap and others, who submitted an affidavit disclosing their stand, in which it was declared that he had planted 4000 forest trees and 1000 fruit trees and was taking crop of Vari and Nachni in some part of the land, when factual inspection of the land was carried out. There is also a reference of construction of Mr. Dharap on the said land.

The report has a reference of 106 receipts produced by Mr. Dharap towards cost of purchase of the plants/saplings and the amount paid as labour charges as well as the expenditure incurred for eight years was also referred to. It is in this background when the report of the Deputy Collector contemplated an expert opinion, the report noted thus :-

"But from the report of Collector, private Forest Raigad fact is not becoming clear whether notification be made as private forest and whether it is suitable for making applicable provisions of Maharashtra Private Forest Act, 1975 at Page 25 to 1247 along with Report receipts of purchase of plants of labour charged are attached. From which attempt is appears to made that to prove that there was artificial plantation. So copy of this report may be forwarded to Conservator of Forest, Thane in order to whether land in question is suitable declaring as private forest vide Notification u/s.21(5) of Maharashtra Private Forest (Acquisition) Act, 1975."

11. In furtherance of the aforesaid Note, the Conservator of Forest, Thane, addressed a communication to the Secretary, (Forest), Revenue and Forest Department, on 13/1/1998,

where we find a contradiction as it was indicated that on personal inspection, greenery was found at the site but as per the contention of Mr. Dharap that he had nourished 4000 trees by artificial plantation, it was found without any substance. Though it was admitted that some trees were planted artificially and 400 trees were alive, it was noted that there is natural greenery of species like Lokhandi, Umbar, Gle, Ranmedhi, Burkuda, Bhosor, Chandora, etc. and there is no scope for extra plantation and also no need of it, and therefore, it was suggested that in respect of area of 56.35 Hectares from Survey No. 2B(3) and Survey No. 2C(1) in consequence of the notification published under section 21(1), further action under section 21(5) be taken.

12. The next stage in the process came when the Law and Judiciary Department, prepared its report on 29/4/1999, and formed an opinion that the Department will have to call for expert opinion in respect of the tract of land for the purposes of Section 21, otherwise the proposed notification would be vulnerable if challenged.

The Law and Judiciary Department, had drawn the aforesaid inference, with reference to the report of the Collector, Raigad, indicating that the owner of the land had planted forest species by artificial means or by human agency and has carried out the afforestation. However, it is recorded that Collector of Raigad is not an expert in forest science and therefore, he had suggested that the opinion of Forest Officer or

an Expert be called for, but in the very same report, the Collector recommended that the tract of land which contained shrubs, is adjacent to the forest and therefore, it may be declared to be a 'Private Forest'.

In the aforesaid background, Law and Judiciary Department recorded thus :-

“On close scrutiny of this report, it appears that the report of the Collector is self-contradictory. It appears from the note at page 59/cs in view of the report of the Collector, the Department has called for the opinion of the Conservator of Forest, Thane on 30/6/1998 and 30.9.1998 which is yet to be received by the State Government. Therefore, taking into consideration the definition of the term 'forest' in clause (c-1) of section 2 of the said Act, the Government has decided to declare the said land to be a private forest under sub-section (5). However, it is pointed out that under sub-section clause (III) of clause (c-i), the pasture land, water-logged or cultivable or non-cultivable laying within or linked to forest may be first declared to be a forest by the State Government. In this case, the said track of land, although it is linked to a forest is not declared to be a forest by the State Government under sub-clause (iii) of clause (c-i) of section 2 of the said Act and therefore, unless the said land is declared as a forest under sub-clause (III) of clause (c-i) it would not be legally feasible to declare the said track of land to be a private forest under sub-section (5) of Section 21 of the said Act. Under such circumstances, the Department will have to call for the expert opinion in respect of the said track of land for the purposes of section 21; otherwise the proposed notification would be vulnerable if challenged.”

The aforesaid information in form of communications is procured by the petitioner no.1 by preferring an application under Right to Information Act and the documents were supplied to him which form part of the petition.

13. The learned Senior Counsel Mr.Naik would submit that in the teeth of the aforesaid correspondence which the petitioners have secured under the Right to Information Act, the

petitioners who were unaware, as after response being filed to the show cause notice received by them, the petitioners did not hear anything and were under the bonafide impression that the proceedings were dropped. However, after more than a decade, when they were prevented from cultivating their agricultural land on the pretext that it is already declared as 'private forest' and it vests in the State, they gained knowledge of the impugned notification of 13/10/1999, purportedly issued under Section 21(5) of the Act of 1975. It is in 2010, the petitioners obtained the relevant information and according to Mr. Naik, it becomes clear that the notification is issued long back, in the teeth of the aforesaid correspondence, which clearly reveal that the nature of the alleged forest was not yet determined conclusively, and it was deemed necessary to have an expert opinion, to assess the stand of the noticee, that it was not a natural forest, but a man made cultivation.

The learned senior counsel would invite our attention to Section 21A of the Act which is inserted by Maharashtra Amendment V of 1998, clarifying that nothing contained in Section 21, which is the power of the State Government of declaration of certain lands as 'private forest' shall apply to any non-forest land, not being the property of Government on which by artificial means or by human agency, afforestation is made by planting forest trees species.

According to Mr. Naik, the said provision exist in form of saving the afforested lands, and in absence of the exercise

initiated in the petitioner's case being concluded, that it was not a non-forest land, it was not open for the State Government to issue a declaration, on a half hearted exercise being carried out. It is his specific contention that by filing affidavits before the Collector, on more than one occasion, the petitioners have attempted to demonstrate that all the plants which had taken the shape of the trees planted on the subject land and standing on the site were purchased from various nurseries, and they were planted and nurtured for considerable length of time by use of labour and expenditure being incurred towards their survival. According to Mr.Naik, no finality has therefore been arrived at by the Forest Department to pronounce upon the defence of the petitioners/noticees to the show cause notice that their land is liable to be declared as 'Private Forest' in exercise of the power under section 21 of the Maharashtra Private Forest (Acquisition) Act, 1975.

14. The claim raised by the petitioners is contested by the respondent and the learned Government Advocate has relied upon the affidavit in reply filed by the Assistant Conservator of Forest on 14/8/2013.

We have perused the affidavit, which at the outset has raised a preliminary objection about the delay in institution of the Writ Petition, as it is contended that the petition is belatedly filed after a gap of 11 years from the date of issuance of notification dated 13/10/1999 and it should not be entertained as it suffer from delay and laches. Apart from this, it is also

contended that if the petitioners want to get their land declared as 'non-forest', then the remedy lies somewhere else.

The reply affidavit, though admit that by communication dated 22/5/1998, the Deputy Collector, Alibag, had expressed an opinion that it would not be proper on his part to express any definite opinion, in the factual background and an expert opinion would be required; the affidavit proceed to state that the expert opinion was called from the Conservator of Thane, which was submitted on 13/1/1999 in which it was suggested that action should be taken in furtherance of Section 21(5) of the Act of 1975. The affidavit further proceed to state that the report from the Law and Judiciary Department dated 29/4/1999 shall not be relied upon, as the expert opinion of the Conservator of Forest, Thane dated 13/1/1999 was not placed before the Law and Judiciary Department, and therefore, it was justified in ignoring the aspect that an expert opinion was already obtained.

15. A rejoinder affidavit came to be filed by the petitioner on 17/9/2013, where it is categorically stated that notification under section 35(1) was also not published. It is further stated that the lands are not in possession of the Forest Department and therefore, they do not fall within the category of 'Reserved Forest' or 'Protected Forest'.

As far as the contention of the delay in filing the petition, it is sought to be justified by submitting that the petitioners have filed the petition, when they became aware of the issuance

of the impugned notification and corrigendum and obtained necessary documents under the RTI Act and therefore, there is no delay. As far as the possession is concerned, the petitioners have stated in the rejoinder affidavit that the revenue record reflected the name of the petitioners, but this position was altered by mutation entry no.71 dated 2/2/2008, which came to the knowledge of the petitioners after they were obstructed in continuing the cultivation on the subject land in January 2010 and this constrained them to seek necessary information under the Right to Information Act and it lead to the filing of the writ petition.

16. Another important facet which is highlighted in the rejoinder affidavit, is the submission of affidavit/report of the Collector, Raigad on 30/3/2007, in furtherance of the directions issued by Hon'ble Supreme Court in **T.N. Godavarman Thirumulkpad Vs. Union of India and ors¹**, where the subject land in possession of the petitioners is not identified as 'Forest'. It is therefore, contended by the petitioners that the impugned action is based on complete misreading of the order of the High Court dated 10/10/2011 in Writ Petition No. 2980/2001 i.e. in case of **Bombay Environment Action Group Vs. State of Maharashtra** (WP No.2980/2001) where the directions were issued on 10/11/2011 to take mutation entries in respect of 'Forest' which was declared as 'Private Forest' in terms of Act of 1975.

1 (1997) 2 SCC 267

17. In light of the rival contentions placed before us, we have applied our mind to the facts involved.

The Maharashtra Private Forest (Acquisition) Act 1975, is enacted by the State legislature in the backdrop of the fact that the forest land in the State was found to be inadequate and the private forest in the State in general is highly degraded and in over-exploited state and was adversely affecting agriculture and agricultural population. The enactment therefore, provided acquisition of private forest in the State generally for conserving the material resources and protecting it from destruction or exploitation by its owner and for promoting systematic and scientific development and management of such forests for the purpose of attaining and maintaining ecological balance in the public interest and also for improving the socio-economic conditions of rural population, particularly the Tribals and other backward communities who live in forest areas.

18. The Act defined 'forest' in Section 2(c-i) as below :-

"Forest" means a tract of land covered with trees (whether standing, felled, found or otherwise), shrubs, bushes, or woody vegetation, whether of natural growth or planted by human agency and existing or being maintained with or without human effort, or such tract of land on which such growth is likely to have an effect on the supply of timber, fuel, forest, produce, or grazing facilities, or on climate, stream flow, protection of land from erosion, or other such matters and includes —

(i) land covered with stamps of trees of forest ;

(ii) land which is part of a forest or lies within it or was part of a forest or was lying within a forest on the 30th day of August 1975;

(iii) such pasture land, water-logged or cultivable or non-cultivable land, lying within or linked to forest, as may be declared to be forest by the State Government ;

(iv) forest land held or let for purpose of agriculture or for any purposes ancillary thereto ;
(v) all the forest produce therein, whether standing, felled, found or otherwise ;]

19. Sub-Section (1) of Section 3 of the Act of 1975 provide for vesting of “Private Forests” in the State Government as it prescribe that all private forest in the State shall stand acquired and vests, free from all encumbrances and shall be deemed to be the property of the State Government and all rights, title, and interest of owner or any person other than the Government subsisting in any such forest are deemed to have been extinguished.

However, sub-section (2) of Section 3 provide that nothing contained in sub-section (1) of Section 3 shall apply to so much extent of the land comprised in a private forest, as is held by an occupant or tenant and is lawfully under cultivation on the appointed day and is not in excess of the ceiling area provided by Section 5 of the Maharashtra Agricultural Land (Ceiling or Holdings) Act 1961. Sub-section (3) of Section 3 further provided that all private forests vested in the State Government by virtue of sub-section (1) of Section 3 shall be deemed to be ‘Reserved Forest’ within the meaning of the Forest Act.

The date of coming into operation for the said Act of 1975 was declared as 30th August 1975.

20. Section 7 of the Statute provide for payment of amount to the owner of private forest as sub-section (1) prescribe that

every owner of a private forest which vests in the State Government under the provisions of the Act, shall be paid by the State Government, an amount which is equal to twenty times the assessment per hectare of land comprised in such forest, to be compensated in accordance with section 23 and 24 of the Land Acquisition Act, 1894.

Section 8 allowed the owner of the private forest to make an application within six months from the appointed date to the Collector for determining the amount payable to him and the Collector shall, after making such formal enquiry, in the manner provided in the Code, shall make an award determining the amount payable to the owner.

21. Section 21 of the Act of 1975 provide for declaration of certain lands as private forests and it contemplate the procedure to be adopted before such a declaration is made, in public interest and for furtherance of the object of the Act.

The said provision prescribe a procedure to be followed where the Collector or any other Officer authorised on behalf of the State Government shall issue a notice to the owner that such tract of land belonging to him, is to be declared as 'forest' and asked him to show cause within the stipulated period.

After hearing the objections, if any, of the owner and other person and considering the evidence that may be produced in support of the same, the Collector or the authorized officer, shall submit its report to the State Government along with the objections, proceeding and his

opinion whether the tract of land should or should not be declared as 'private forest'.

Upon consideration of the objections and report and opinion of the Collector, the State Government shall take a final decision and if it decide to declare such tract of land as private forest, it shall publish its decision by notification in the Official Gazette and upon such notification being published, it shall be deemed to be a 'Private Forest' and all the provisions of the Act of 1975 shall apply thereto.

On the publication of such notification, it shall not be lawful for the owner of such tract of land or any other person to do therein, except with the previous permission in writing of the Divisional Forest Officer, the activity clearly prohibited till the date of publication of the notification. If any person contravene the provisions of sub-section (8) of Section 21, he shall on conviction, be punished with imprisonment for a term which may extend to six months or with fine or both.

20. One more relevant provision in the scheme of the enactment is Section 21A which reads thus:-

“21A. Saving of certain afforested lands.— Nothing in section 21 shall apply to any non-forest land, not being the property of Government, on which by artificial means or by human agency afforestation is made by planting forest tree species”

22. The facts placed before us and the counter submissions advanced carefully require appreciation in light of the statutory scheme and in specific, Section 21 and Section 21-A, and this is what we have precisely done.

As far as the objection as regards the petition being filed with delay and therefore, barred by limitation, we find that though the show cause notice was issued to the petitioners on 23/3/1998, and the petitioners submitted their objection on 17/4/1998, to the District Collector, Alibag, and also submitted an additional statement on 21/4/1998 after the visit of the Deputy Collector on 20/4/1998, the petitioners did not hear about the progress of the proceedings, nor did they come across any notification. It is in the year 2010 that after the period of more than 10 years, when they were asked to stop the activity of cultivation and they came across the entry in the mutation records, they filed the applications under RTI Act and sought necessary information and thereafter approached the Court. The application filed by the petitioners under the RTI Act and the document submitted are all part of the petition and therefore, from the date of knowledge that their land has been declared as 'Private Forest' and deemed to have vested in the State Government, we do not find that the petition suffers from delay and laches, as the petitioner did not hear anything from the respondents and they were justified in assuming that the proposed action initiated under section 21(5) of the Act of 1975, was dropped and particularly, when they garnered under an impression that the notification dated 22/10/1998 itself had lapsed on 4/10/1999.

As far as another objection raised in the affidavit of the State that the petitioner's remedy lies somewhere else, we do not find merit in the same, as we have noted that the Forest Department which has invoked Section 21 in declaring the land of the petitioner as 'private forest', the burden lies on the Forest Department, to satisfy the Court that all parameters of Section 21 of the Act of 1975, have been met. It is also to be noted that the decision of the State Government to declare the land following the procedure under section 21 is given finality by virtue of sub-section (4) of Section 21, but what is expected is, that before declaring the land to be 'Private Forest', the Government shall take into consideration the objections, proceedings and report and the opinion of the Collector, or as the case may be, of the authorised officer and then decide whether such tract of land or any part thereof, should or should not be declared as 'Private Forest'.

In the wake of the finality attached to the decision of the State Government, which is published in the Official Gazette, we do not find that there is any other remedy available to the petitioner in form of a statutory appeal or so, and in the wake of the finality attached to the decision of the State Government, the Writ Petition is the only remedy which the petitioners are entitled to invoke and therefore, we had entertained the Writ Petition.

23. As far as the merits of the case are concerned, it is to be noted that on 22/10/1997, the State Government published a

notification in the Official Gazette purportedly in terms of section 21(1) of the Act of 1975, proposing the subject lands to be declared as 'Private Forest' and calling upon the interested persons to file their objections. The petitioners also received the notices in the nature of show cause dated 23/3/1998 and the petitioners submitted their detailed objection on 17/4/1998 to the District Collector, specifically pointing out that the lands are agricultural lands and the petitioners are cultivating the same. Voluminous evidence was also placed before the Collector about the plants standing on the subject land having been planted by purchasing the same for nursery and they being nurtured for years together before they took shape of trees. It was, therefore, the specific stand of the petitioners that the vegetation on the subject land was not forest, but human-made and man created. The petitioners even submitted the receipts of the purchase of the plants/saplings and specifically the forest species and also produced documentary evidence as regard the payments made to the labours, engaged for planting of the sapling, nurturing them and growing them into trees.

It is this material, which prompted the Deputy Collector of Revenue and Forest to communicate to the Principal Secretary (Forest and Revenue) that it was not possible to determine whether the trees standing on the said lands were naturally grown and whether there was any intervention of human agency and therefore, it was suggested that an expert opinion be taken in that regard.

The Forest Department prepared a note agreeing to the said submission, but adopted a contradictory stand about the nature of the land as it recorded that as per contention of Mr. Dharap (one of the petitioner), he had nourished 4000 trees by artificial plantation and such kind of trees are planted artificially out, of which 400 plants were alive. The contention of Mr. Dharap in this regard, without any specific reason was not believed.

However, the Law and Judiciary Department prepared an exhaustive report on 29/4/1999 reiterating that the Forest Department will have to call for an expert opinion before the notification is issued under sub-section (5) of Section 21 of the Forest Act, 1975, and if not, action of the Forest Department is vulnerable and liable for challenge. However, in ignorance of the same, on 13/10/1999 the State of Maharashtra issued the impugned notification purportedly under section 21(5) of the Act of 1975, declaring the said land as 'private forest' which is followed by corrigendum as there was error in the survey numbers of one of the subject land.

24 It is worth to note that in utter ignorance of the factual aspect of the inspection of the site, which found trees planted and standing on the land, and the question that arose for consideration, whether they were naturally or artificially grown with the intervention of human agency and the Deputy Collector was of the opinion that opinion of an expert should be called for determination of the said issue. Even the Law and

Judiciary finds the same, but in utter ignorance, without taking any further steps, the final impugned notification was issued, as the State Government failed to obtain a conclusive expert opinion to determine whether the trees standing on the subject land were planted artificially or grown naturally, as required under Section 21A of the Act of 1975.

It is pertinent to note that a positive assertion was made by the petitioner before the Collector that they had planted various trees species and even produced evidence to that effect and therefore, as per mandate of Section 21A, it could not be covered within the purview of 'Private Forest'. However, in utter ignorance of the fact that the land was agricultural and afforested by human agency and despite offering the details of plantation activity since 1984, the respondents, according to us, had failed to consider the evidence. The panchnama prepared by the Deputy Collector on 20/4/1998 confirmed that afforestation was made by artificial means or human agency and yet this panchnama was ignored by the respondents. The opinion of the Conservator of Forest, Thane, being termed as 'expert opinion' is also not of any consequence as we find that it cannot be considered as valid expert opinion with any basis for declaring the lands as 'Private Forest'.

25. Another ground which Mr. Naik has pressed into service, is the jurisdictional failure on part of the respondents to meet the parameters of Section 21 of the Act of 1975, and he has invoked sub-section (8) of Section 28, to submit that the

notification dated 22/10/1997, lapsed on 21/10/1998, and therefore, the impugned notification dated 13/10/1999 along with its corrigendum, issued after lapse of the original notification, has rendered them invalid.

We do not find the said contention to be of correct interpretation of sub-section (8) of Section 21 of the Act and we do not agree with the said submission.

Sub-section (8) of Section 21 reads to the following effect:-

“On the publication of a notification under sub-section (1) in respect of any tract of land, it shall not be lawful for the owner of such tract of land or any other person to do therein, except with the previous permission in writing of the Divisional Forest Officer, any of the following things for a period of one year from the date of such publication, or till the date of the publication of the notification under sub-section (5), or as the case may be, till the date of communicating the decision under sub-section (7), whichever period expires earlier, namely :—

- (a) the breaking up or cleaning of the land for cultivation ;*
- (b) the pasturing of cattle ;*
- (c) the firing or cleaning of the vegetation ;*
- (d) the girding, tapping or burning of any tree or the stripping off the bark or leaves from any tree ;*
- (e) the lopping and pollarding of tree ;*
- (f) the cutting, sawing, conversion and removal of trees and timber ; or*
- (g) the quarrying of stone or the burning of lime or charcoal or the collection or removal of any forest produce or its subjection to any manufacturing process.”*

26. A careful reading of the said sub-section, in the light of the other sub-sections, make it clear that on publication of the notification under sub-section (1) in respect of any tract of land, certain restrictions are imposed on the owner and except with the previous permission in writing of the Divisional Forest

Officer, he is prohibited from carrying out such activities for a period of one year or till the date of publication of the notification under sub-section (5) or as the case may be, till the date of communicating the decision under sub-section (7), whichever period expires earlier.

Thus, the restriction under sub-section (8) is for carrying out the activities which are declared to be prohibited by the notification published under sub-section (1) in respect of any tract of land, but we do not find any embargo in law, that if the State Government do not publish the declaration under sub-section (5) within period of one year, it cannot do so, as we find that the restrictions imposed shall operate for a period of one year as on the date of publication and sub-section (1) notification or till the date of publication of notification under sub-section (5), but that itself would not render a notification published under sub-section (5) illegal, if published after one year.

We do not accept the contention of Mr. Naik in that regard.

27. However, since we are satisfied that the procedure that is prescribed under sub-section (1) of Section 21, is not adhered to, and it was necessary for the State Government to apply its mind to the objections, proceedings and report and the opinion of the Collector, but without a conclusive opinion being expressed that the trees standing on the subject land were natural trees and therefore, would be covered under the

definition of 'forest', we do not find that the State Government was justified in undertaking a half hearted exercise in respect of the lands of the petitioners.

28. Resultantly, the declaration published in respect of the petitioner's land is liable to be set aside by quashing and setting aside the impugned notification dated 13/10/1999. Similarly, the mutation entry deleting the name of the petitioners and recording the name of the Government in the Other Right's Column, is also quashed and set aside.

Since the petitioners are still in possession of the subject land, we direct that they shall continue to be in possession thereof.

In wake of the aforesaid, Writ Petition is made absolute.

(MANJUSHA DESHPANDE,J)

(BHARATI DANGRE, J.)